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Updates about Federal Actions

Oregon Housing and Community Services is working closely with Governor Kotek's office to monitor and assess federal actions that could impact housing in Oregon. As the state's housing finance agency, OHCS remains committed to serving Oregonians across the housing continuum, from preventing homelessness, to supporting housing stability, to financing the building and preservation of affordable housing, and expanding pathways to homeownership. OHCS will stay focused on advancing solutions that meet the needs of Oregon communities.

April 6, 2026 | Update

Update: Continuum of Care (CoC) Federal Lawsuit

On Dec. 23, 2025, a federal judge issued a preliminary injunction that pauses the U.S. Department of Housing and Urban Development (HUD)'s 2025 changes until there is a final ruling in the litigation. On April 1, 2026, an appeals court denied HUD's request to temporarily implement the restrictions.

- For now, HUD is legally forbidden from moving ahead with the FY25 Notice of Funding Opportunity (NOFO) and the policy changes it includes. The court ordered HUD to follow the FY24-25 Continuum of Care (CoC) NOFO policies that were in place before the overhaul began.
- HUD has repeatedly sought to undo the preliminary injunction, but as April 1, 2026, the preliminary injunction remains in effect.
- In Jan. 2026, HUD and the plaintiff states each filed motions for a summary judgment asking the court to issue a final decision in their favor. The court has not yet ruled on those motions.
- On Feb. 3, 2026, the Consolidated Appropriations Act of 2026 (H.R. 7148) was signed into law. Section 244 of that law affects the CoC program:
    - HUD must renew all CoC projects expiring during the first quarter of 2026.
    - If HUD does not award FY25 funding to CoC projects expiring during the second quarter of 2026 under a NOFO by April 1, 2026, HUD must renew those projects.

- If HUD does not award FY25 funding to CoC projects expiring during the third and fourth quarters of 2026 under a NOFO by July 1, 2026, HUD must renew those projects.

HUD announced an initial round of awards to some CoCs on March 31, 2026. Thus far, the total amount awarded through the renewal process under the FY24-25 NOFO to Oregon CoCs is $11.3 million (specific projects listed on HUD's website (https://www.hud.gov/sites/default/files/OCHCO/documents/ALL-Press-Round-1.pdf#page=%5b53%5d)). OHCS is not a direct pass-through for CoC funds, but many CoCs are key partners in delivering state and federal housing resources across Oregon.

The Oregon Department of Justice, along with a coalition of other states, continues to actively challenge the proposed changes in court to maintain stability for essential housing programs.

March 9, 2026 | Update

HUD Federal Regulatory Update

On Friday, Feb. 27, 2026, the U.S. Department of Housing and Urban Development (HUD) released a proposed rule to allow – but not require – most housing agencies and project-based rental assistance (PBRA) owners to impose work requirements and/or time limits for non-elderly, non-disabled households living in HUD-assisted housing.

Housing authorities and owners could apply these requirements to households assisted through the public housing, tenant-based voucher, project-based voucher, and PBRA programs.

OHCS intends to offer comments and recommendations on the following current slate of proposed changes:

- Notice of new Department of Treasury system of records (https://www.federalregister.gov/documents/2026/02/04/2026-02234/privacy-act-systems-of-records) for information collected in connection with the administration of financial assistance programs (Homeowner Assistance Fund, Emergency Rental Assistance, State and Local Fiscal Recovery Fund, etc.)
    - March 6 | Comments due
- HUD Proposed Rule: Verification of Eligible Status for HUD-Subsidized Housing Assistance (https://www.govinfo.gov/content/pkg/FR-2026-02-20/pdf/2026-03405.pdf?utm_source=NCSHA&utm_campaign=f414eab011-EMAIL_CAMPAIGN_2018_12_14_02_36_COPY_01&utm_medium=email&utm_term=0_f00bc192e4-f414eab011-65514643) (Mixed Immigration Status households)
    - April 21 | Comments due

- HUD Interim Final Rule: Revocation of the 30-Day Notification Requirement (https://www.federalregister.gov/documents/2026/02/26/2026-03921/revocation-of-the-30-day-notification-requirement-prior-to-termination-of-lease-for-nonpayment-of?utm_source=NCSHA&utm_campaign=f414eab011-EMAIL_CAMPAIGN_2018_12_14_02_36_COPY_01&utm_medium=email&utm_term=0_f00bc192e4-f414eab011-65514643) Prior to Termination of Lease for Nonpayment of Rent
    - April 27 | Comments due
- HUD Proposed Rule: Establishing Flexibility for Implementation of Work Requirements and Term Limits (https://www.federalregister.gov/documents/2026/03/02/2026-04095/establishing-flexibility-for-implementation-of-work-requirements-and-term-limits)
    - May 1 | Comments due

This page will be updated as more information becomes available.

Feb. 6, 2026 | Update

Interagency Council on Immigration and Refugee Coordination

On Jan. 30, 2026, Gov. Tina Kotek signed an executive order establishing a new Interagency Council for Immigrant and Refugee Coordination (https://apps.oregon.gov/oregon-newsroom/OR/GOV/Posts/Post/governor-kotek-seeks-to-strengthen-statewide-response-to-increased-federal-actions) to ensure state agencies are aligned, responsive, and consistent in supporting immigrant and refugee communities amid escalating and abusive federal immigration enforcement tactics that are destabilizing Oregon communities and spreading fear among families across the state.

The council is led by the Office of Immigrant and Refugee Advancement (OIRA) (/odhs/about/pages/oira.aspx), housed within the Oregon Department of Human Services (ODHS) (/odhs/pages/default.aspx), and composed of several key state agencies, including Oregon Housing and Community Services. The council will inventory current agency protocols and practices related to reports of immigration enforcement activities and identify opportunities to improve the state response and support for communities impacted.

This page will be updated as more information becomes available.

Jan. 29, 2026 | Update

HOME, HTF, ESG, and PRICE Grant Implementation

The most recent federal grant agreements from the U.S. Department of Housing and Urban Development (HUD) for the Emergency Solutions Grants (ESG), Home Investment Partnership Program (HOME), Housing Trust Fund (HTF), and Preservation and Reinvestment Initiative for Community Enhancement (PRICE) programs include new conditions. These conditions make it much harder for long-standing programs to operate, and some of these conditions may conflict with Oregon state law (e.g., the condition purporting to implement Executive Order (EO) 14168 may conflict with ORS 659A.400-659A.403).

These conditions have been challenged in court. In 2025, a federal court preliminarily enjoined HUD from enforcing several conditions, including the condition related to EO 14168, until a final judgment is issued in that case. The court's order prevents HUD from enforcing certain conditions while the litigation is pending. It also allows OHCS to accept the grants and continue to operate these long-standing programs while the litigation proceeds. A decision in that case is expected later in 2026.

Several other new conditions relate to HUD's new interpretation of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996. In another lawsuit, in which the State of Oregon is a plaintiff, HUD has agreed not to implement its new interpretation of that law until a final judgment in that case. A final decision in that case is also not anticipated until later this year.

Federal Fiscal Year 2026 Budget

Congress has agreed on a budget for HUD, the Department of Health and Human Services, the Department of Agriculture, and the Department of Energy. Congress now needs to hold a vote to pass the bills before a potential shutdown on Jan. 30.

View the Most Recent Budget Numbers (/ohcs/Pages/proposed-federal-budgets-housing-homelessness.aspx)

This webpage will be updated as more information becomes available.

Dec. 11, 2025 | Update

Continuum of Care Funding Lawsuit

On Dec. 9, 2025, the U.S. Department of Housing and Urban Development (HUD) temporarily withdrew its proposed changes to the federal Continuum of Care (CoC) program. This action came shortly before a scheduled federal court hearing on the lawsuits filed by Oregon (https://www.doj.state.or.us/media-home/news-media-releases/ag-rayfield-sues-over-hud-policy-that-would-force-people-into-homelessness/) and other states, as well as a separate lawsuit brought by local governments and nonprofit organizations across the country.

HUD stated that it is rescinding the notice of funding opportunity to reassess the concerns raised in the litigation and to issue a revised version. While this pause does not resolve the underlying issues, it means the proposed restrictions — including the significant reduction in allowable permanent housing funding and new conditions tied to service models — are not moving forward at this time.

HUD has indicated it intends to reissue a corrected notice "as quickly as possible," and OHCS will continue monitoring developments closely. OHCS is not a direct pass-through for CoC funds, but many CoCs are key partners in delivering state and federal housing resources across Oregon. Any federal changes to the CoC program could affect local capacity and the availability of permanent housing options for Oregonians.

This webpage will be updated as the federal process evolves and more information becomes available.

Nov. 25, 2025 | Update from the executive director

Continuum of Care Funding Lawsuit

On Nov. 25, 2025, Oregon joined several other states in a lawsuit (https://www.doj.state.or.us/media-home/news-media-releases/ag-rayfield-sues-over-hud-policy-that-would-force-people-into-homelessness/) to block the U.S. Department of Housing and Urban Development (HUD) from imposing changes that would impact the federal Continuum of Care (CoC) program. CoC's are regional strategic planning bodies that deliver locally driven solutions to reduce the experience of homelessness among individuals, youth and families.

OHCS is not a pass through of these funds, as other states are, but CoCs often serve as grantee partners of other state and federal resources OHCS administers. Among HUD's changes, include imposing a severe cap on how much funding CoCs can put towards permanent housing solutions and directing communities to put resources primarily towards temporary housing. Meaning, Oregonians would have fewer options to access permanent housing.

We will continue to update this webpage with information about how federal changes could affect housing programs in Oregon.

Nov. 7, 2025 | Update

Federal Shutdown and SNAP

Yesterday afternoon, a federal court ordered the federal administration to immediately release 100% of funding to pay for Supplemental Nutrition Assistance Program (SNAP) benefits for all recipients nationwide by today, including more than 750,000 Oregonians.

According to the Oregon Department of Human Services, everyone should have full November SNAP benefits on their EBT cards this morning, Nov. 7, 2025, even if you normally receive SNAP later in the month.

For more information, visit the Oregon Department of Human Services website (/odhs/Pages/default.aspx).

We continue to closely monitor the federal shutdown. At this time, there are no direct impacts to OHCS' housing programs.

Nov. 4, 2025 | Update

Federal Shutdown and SNAP

November SNAP benefits have been delayed due to the federal government shutdown, impacting approximately 757,000 Oregonians.

On Nov. 3, the Oregon Department of Human Services shared that the federal administration is only partially funding November SNAP benefits due to a federal court ruling. These benefits will still be delayed for recipients.

Oregonians who may be impacted by these benefit delays can visit the Oregon Department of Human Services website (/odhs/Pages/default.aspx) to stay informed and find preparation tips, local food programs, and other support resources.

We continue to closely monitor the federal shutdown. At this time, there are no direct impacts to OHCS' housing programs.

Oct. 29, 2025 | Update

Federal Shutdown and SNAP

Approximately 757,000 Oregonians who receive food assistance through the Supplemental Nutrition Assistance Program (SNAP) will not receive November benefits if the federal shutdown continues beyond Oct. 31.

Oregonians who may be impacted by these benefit delays can visit the Oregon Department of Human Services website (/odhs/Pages/default.aspx) to stay informed and find preparation tips, local food programs, and other support resources.

We continue to closely monitor the federal shutdown. At this time, there are no direct impacts to OHCS' housing programs.

Oct. 2, 2025 | Update from the executive director

Federal Fiscal Year 2026 Budget

As of Oct. 1, 2025, the federal government shut down because Congress did not approve a fiscal year 2026 budget before the end of Sept. 30 or pass a continuing resolution to keep the government funded and open. This means only essential federal employees are continuing to work, including at the agencies with which OHCS works closely.

At this time, OHCS still has access to the federal systems we rely on to secure funds and we do not anticipate impacts to programs.

OHCS is tracking federal budget discussions, paying careful attention to budget proposals for the U.S. Department of Housing and Urban Development (HUD) and other federal agencies with housing-related programs. To help monitor these, we've created the below crosswalk of budget proposals focused on housing programs.

View Info About Budget Proposals (/ohcs/Pages/proposed-federal-budgets-housing-homelessness.aspx)

Despite what is happening at the federal level, OHCS will continue working to increase access to stable housing and providing the support Oregonians need to achieve stability. We proudly serve all Oregonians with dignity and respect.

Aug. 20, 2025 | Update from the executive director

Energy Assistance Funding Lawsuit

On Aug. 15, Oregon joined several other states and the District of Columbia in a lawsuit (https://www.doj.state.or.us/media-home/news-media-releases/attorney-general-rayfield-sues-to-stop-federal-cuts-that-threaten-state-energy-programs/) to block the Department of Energy from imposing changes that would limit support for state-run energy programs. These changes would include impacts to the OHCS-administered Weatherization Assistance Program (WAP). The program provides vital assistance to families through funding for health and safety repairs, heating system repair and replacement, and more.

We will continue to update this webpage with information about how federal changes could affect housing programs in Oregon.

July 29, 2025 | Update from the executive director

Federal executive order

On July 24, the White House issued an executive order on homelessness. OHCS is working closely with Governor Kotek and the Oregon Department of Justice to review the executive order's contents and implications. As we understand it, the executive order on its own does not immediately change OHCS programs, how they are administered, or the agency's work on homelessness initiatives.

We will be monitoring whether and how federal agencies–such as the departments of Health and Human Services, Housing and Urban Development, and Transportation–may change their programs and policies in response to this executive order, and whether those changes affect OHCS' priorities or responsibilities.

Program eligibility lawsuit

On July 21, Oregon joined several other states in a class action lawsuit (https://www.doj.state.or.us/media-home/news-media-releases/attorney-general-dan-rayfield-files-lawsuit-to-block-federal-restrictions-on-public-benefits/) against the federal administration over its new interpretation of rules that restricts states from using federal funds to provide services to those who cannot verify immigration status. These changes would include impacts to the OHCS-administered Community Services Block Grant (CSBG) which provides vital assistance to families through rent support, medical care, or transportation needed to keep their jobs.

July 16, 2025 | Update from the executive director

At the federal level, the Reconciliation Bill was signed into law on July 4. OHCS is working closely with Governor Kotek to review its contents and implications, and we remain committed to ensuring Oregon's housing needs are not sidelined.

Reduced federal housing spending impacts Oregonians and will impede housing progress in our state. We cannot afford to fail the people of Oregon. It's becoming harder for people not just to get ahead, but to hang on to what they have. Cuts to critical housing programs will leave families, veterans, seniors, and everyday working people unprepared for the future.

We share in the federal government's goals of boosting housing supply, lowering household costs, better serving rural and Tribal communities, expanding access to capital, and promoting economic growth.

OHCS federally funded programs

Below are OHCS programs that receive at least partial federal funding.

Program Name
Climate Equity and Resilience Through Action (CERTA) (https://www.oregon.gov/deq/ghgp/certa/Pages/about-certa.aspx)
Community Services Block Grant (CSBG) (https://www.oregon.gov/ohcs/for-providers/pages/csbg.aspx)
Dept. of Energy Bipartisan Infrastructure Law (DOE-BIL) (https://www.oregon.gov/ohcs/energy-weatherization/Documents/Final-U%20S%20-DOE-BIL-for-State-of-Oregon-Weatherization-Assistance-Plan.pdf)
Dept. of Energy Weatherization Assistance Program (DOE-WAP) (https://www.oregon.gov/ohcs/energy-weatherization/pages/weatherization-services.aspx)
Emergency Solutions Grant (ESG) (https://www.oregon.gov/ohcs/for-providers/Documents/factsheets/FACTSHEET-ESG.pdf)

Program Name
HOME Investment Partnerships Program (HOME) (https://www.oregon.gov/ohcs/rental-housing/housing-development/development-resources/Pages/home-homearp-housing-trust-fund.aspx)
HOME Tenant Based Rental Assistance (HOME TBRA) (https://www.oregon.gov/ohcs/for-providers/Documents/factsheets/FACTSHEET-HTBA.pdf)
Homeowner Assistance Fund (closed) (https://oregonhomeownerassistance.org)
Housing Stabilization Program (HSP) (https://www.oregon.gov/ohcs/for-providers/Documents/factsheets/FACTSHEET-HSP.pdf)
Housing Trust Fund (HTF) (https://www.oregon.gov/ohcs/rental-housing/housing-development/development-resources/Pages/home-homearp-housing-trust-fund.aspx)
HUD 811 (https://www.oregon.gov/ohcs/compliance-monitoring/pages/program-hud-811-project-rental-assistance.aspx)
HUD Contract Administration (HCA) (https://www.oregon.gov/ohcs/compliance-monitoring/pages/hud-project-based-section-8.aspx)
Low-Income Housing Tax Credits (LIHTC) (https://www.oregon.gov/ohcs/rental-housing/housing-development/development-resources/pages/low-income-housing-tax-credits.aspx)
Preservation and Reinvestment Initiative for Community Enhancement (PRICE) (https://www.oregon.gov/ohcs/mmcrc/pages/price-grant.aspx)
ReOregon (https://re.oregon.gov)
Weatherization Training and Technical Assistance (Wx-T&TA) (https://www.oregon.gov/ohcs/energy-weatherization/pages/training-technical-assistance.aspx)

Past updates and resources:

Federal actions on U.S. Interagency Council on Homelessness and Community Development Financial Institutions Fund

On March 14, a federal executive order (https://www.whitehouse.gov/presidential-actions/2025/03/continuing-the-reduction-of-the-federal-bureaucracy/) was enacted to eliminate all non-statutory functions of the U.S. Interagency Council on Homelessness (USICH). USICH coordinates strategies and solutions across federal agencies to address homelessness.

This executive order does not affect funding for OHCS-administered programs. OHCS is closely monitoring for any potential operational impacts to ensure continued support for their work.

Sanctuary laws and resources

Oregon's Sanctuary Promise laws mean everyone has the right to live, work, learn, and access government services safely in Oregon. Visit the Oregon Department of Justice Sanctuary Promise Community Toolkit (https://www.doj.state.or.us/oregon-department-of-justice/civil-rights/sanctuary-promise/community-toolkit/) for information and resources.

Contact Oregon's Sanctuary Promise Response Hotline (https://www.doj.state.or.us/oregon-department-of-justice/civil-rights/sanctuary-promise/reporting-sanctuary-promise-violations-to-the-hotline/) to report a suspected violation, get support, or be connected to resources at (844) 924-7829, Monday - Friday. Multilingual and interpretation services are available.

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